

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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RUDOLPH JENKINS,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
LAWRICE L. CRAWFORD, Shield No. 1943, POLICE
OFFICER MICHAEL RODRIGUEZ, Shield No. 16673,
SERGEANT KATHRYN HENNESSEY and POLICE
OFFICERS JOHN DOES #s 1-4 (names and numbers of
whom are unknown at present),

Defendants.

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the amended complaint in this action, and to serve a copy of your answer, or, if the amended complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 4, 2019

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER LAWRIE L. CRAWFORD, Shield No. 1943, 41st Precinct, 1035
Longwood Avenue, Bronx, NY 718542-4771
POLICE OFFICER MICHAEL RODRIGUEZ, Shield No. 16673, 41st Precinct, 1035
Longwood Avenue, Bronx, NY 718542-4771
SERGEANT KATHRYN HENNESSEY, 41st Precinct, 1035 Longwood Avenue,
Bronx, NY 718542-4771

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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RUDOLPH JENKINS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
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OFFICER MICHAEL RODRIGUEZ, Shield No. 16673,
SERGEANT KATHRYN HENNESSEY and POLICE
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Defendants.
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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff RUDOLPH JENKINS, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violations of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 21, 2017, at approximately 12:30 am, plaintiff was lawfully driving a motor vehicle in the vicinity of Southern Blvd. and East 167th Street, Bronx, NY, when defendants unlawfully stopped, questioned, frisked, searched, and falsely arrested/imprisoned plaintiff. The officers also subjected plaintiff to abuse of process, maliciously prosecuted plaintiff and denied plaintiff the right to due process/ the right to a fair trial. A criminal prosecution was unlawfully initiated against plaintiff on May 21, 2017 at 11:00 pm. Plaintiff was required to return to criminal Court on approximately 10 occasions and to endure a criminal prosecution that lasted 1 year and 2 months before the criminal charges terminated in his favor and were dismissed and sealed in their entirety on July 3, 2018. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution, but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene. Plaintiff missed 9 days of work to attend the Criminal Court appearances he was required to attend in this case, and he lost a full day of income for each of the nine days of work he missed. In total, plaintiff lost approximately \$2,340 in income. Additionally, plaintiff's New York State Driver's License was suspended for 1 1/2 years because he was falsely arrested

and maliciously prosecuted and he was required to pay \$750 in order to get his Driver's License activated in November 2018. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched plaintiff, searched plaintiff's vehicle, subjected plaintiff to the abuse of process, maliciously prosecuted plaintiff, and denied plaintiff the right to due process/right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff RUDOLPH JENKINS is a resident of the state of New York.

3. Defendant POLICE OFFICER LAWRISE L. CRAWFORD, Shield No. 1943, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant POLICE OFFICER LAWRISE L. CRAWFORD, Shield No. 1943, is and was at all times relevant herein, assigned to the 41st Precinct.

5. Defendant POLICE OFFICER LAWRISE L. CRAWFORD, Shield No. 1943, is being sued in his individual and official capacity.

6. Defendant POLICE OFFICER MICHAEL RODRIGUEZ, Shield No. 16673, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant POLICE OFFICER MICHAEL RODRIGUEZ, Shield No. 16673, is and was at all times relevant herein, assigned to the 41st Precinct.

8. Defendant POLICE OFFICER MICHAEL RODRIGUEZ, Shield No. 16673, is being sued in his individual and official capacity.

9. Defendant SERGEANT KATHRYN HENNESSEY is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant SERGEANT KATHRYN HENNESSEY, is and was at all times relevant herein, assigned to the 41st Precinct.

11. Defendant SERGEANT KATHRYN HENNESSEY is being sued in his individual and official capacity.

12. Defendants NEW YORK CITY POLICE OFFICERS JOHN DOES #s 1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Defendants NEW YORK CITY POLICE OFFICERS JOHN DOES #s 1-4 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claims against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50 and a hearing pursuant to General Municipal Law Section 50-h was conducted by defendant City of New York on October 19, 2018.

17. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

18. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

19. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

20. On May 21, 2017, at approximately 12:30 a.m., plaintiff was lawfully driving a motor vehicle in the vicinity of Southern Blvd. and East 167th Street, Bronx, New York when the defendant police officers stopped plaintiff's vehicle, without reasonable suspicion, probable cause or any legal justification.

21. At no time prior to stopping plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed a crime, was about to commit a crime, or was in the process of committing a crime.

22. At no time relevant herein did plaintiff commit a crime, nor did the defendant police officers have an objective factual basis to believe she committed a crime.

23. At no time relevant herein was plaintiff in possession of any drugs, weapons, or contraband of any kind, nor did the defendant police officers have an objective reason to believe plaintiff possessed drugs, weapons, or contraband of any kind.

24. Notably, at no time relevant herein did defendants wa charge plaintiff with violating any section of the VTL.

25. Defendants falsely alleged in their paperwork that they pulled plaintiff's vehicle over because he was driving too close to the vehicle immediately in front of him.

26. Defendants fabricated the allegation that plaintiff was tailgating the vehicle in front of him in order to justify stopping plaintiff's vehicle.

27. Defendants used the false allegation that plaintiff was tailgating the vehicle in front of him as a pre-textual basis for stopping plaintiff's vehicle.

28. In fact, at no time relevant herein did plaintiff tailgate the vehicle in front of him, nor did plaintiff violate the law in any way, and the defendant police officers lacked a legal basis to pull plaintiff's vehicle over and seize plaintiff.

29. The defendant police officers do not allege plaintiff was driving in an erratic manner or in a manner that in any way gave defendants an objective reason to believe he was driving while intoxicated.

30. At no time prior to pulling claimant's vehicle over did the police officers suspect plaintiff of driving while intoxicated.

31. After plaintiff pulled his vehicle to the side of the road the police officers approached his vehicle, ordered plaintiff to step out of the vehicle, and asked plaintiff for his license and registration.

32. Plaintiff complied with the officers' instructions.

33. Defendants searched plaintiff's person without probable cause or legal justification and did not recover any illegal drugs, weapons, or contraband pursuant to the search.

34. Plaintiff's vehicle was legally registered, and he had a lawful and valid New York State driver's license to drive the vehicle.

35. Defendants also conducted an illegal search of the vehicle and did not recover any illegal drugs, weapons, or contraband pursuant to the search of the vehicle.

36. Although the defendants lacked probable cause to believe plaintiff committed a crime, the officers unlawfully handcuffed plaintiff and falsely arrested him without probable cause or legal justification.

37. Defendants transported plaintiff to the 41st precinct against his will where he was fingerprinted, photographed, and detained in a holding cell for many hours.

38. Plaintiff was transported to Bronx Central Booking where he was detained for many additional hours in several holding cells.

39. The defendants provided the Bronx County District Attorney's Office with false, misleading, and incomplete information and evidence in order to justify arresting plaintiff and charging him with crimes and defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process/ right to a fair trial.

40. On May 21, 2017 at 11:00 pm plaintiff was arraigned in Bronx Criminal Court and was maliciously charged with Operating a Motor Vehicle Under the Influence of Alcohol, without probable cause and based upon the false, misleading and incomplete information and evidence provided by defendants to the District Attorney's Office.

41. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendants in the criminal court complaint, defendants initiated a criminal prosecution against plaintiff on May 21, 2017, and legal process against plaintiff was commenced when plaintiff was arraigned in Bronx Criminal Court and was falsely charged with several crimes.

42. Plaintiff was released on his own recognizance at arraignment.

43. Plaintiff was required to return to criminal Court on approximately 10 occasions and to endure a criminal prosecution that lasted 1 year and 2 months before the criminal charges terminated in his favor and were dismissed and sealed in their entirety on July 3, 2018.

44. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution, but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

45. Plaintiff missed 9 days of work to attend the Criminal Court appearances he was required to attend in this case, and he lost a full day of income for each of the nine days of work he missed.

46. Plaintiff lost approximately \$2,340 in income.

47. Additionally, plaintiff's New York State Driver's License was suspended for 1 1/2 years because he was falsely arrested and maliciously prosecuted and he was required to pay \$750 in order to get his Driver's License activated in November 2018.

48. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, abuse of process, and denial of due process/ right to a fair trial, against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, and Fourteenth Amendment Rights

49. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, subjected plaintiff to abuse of process and denied plaintiff the right to due process/ right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

51. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

52. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

54. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

58. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

60. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

64. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

65. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of her pants and underneath her clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

67. Defendants lacked probable cause to search plaintiff.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

72. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

74. Defendants commenced and continued a criminal proceeding against plaintiff.

75. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

76. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

77. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

81. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 80 with the same force and effect as if fully set forth herein.

82. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

83. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

84. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

85. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

86. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process

90. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 89 with the same force and effect as if fully set forth herein.

91. Defendants issued legal process to place plaintiff under arrest and to initiate a criminal prosecution against him.

92. Defendants arrested and prosecuted plaintiff in order to obtain a collateral objective outside the legitimate ends of the legal process.

93. Defendants acted with intent to do harm to plaintiff, without excuse or justification.

94. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

96. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Failure to Intervene

97. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

99. Defendants failed to intervene to prevent the unlawful conduct described herein.

100. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

102. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

103. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

TENTH CAUSE OF ACTION

Negligence

105. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 104 with the same force and effect as if more fully set forth at length herein.

106. Defendants owed a duty of care to plaintiff.

107. Defendants breached that duty of care by unlawfully stopping, questioning, frisking, falsely arresting, illegally searching, maliciously prosecuting, and denying plaintiff the right to due process.

108. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

109. All of the foregoing occurred without any fault or provocation by plaintiff.

110. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

ELEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

111. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 110 with the same force and effect as if more fully set forth at length herein.

112. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

113. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

114. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

115. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Rudolph Jenkins demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 4, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 4, 2019

/s/

DAVID M. HAZAN